

Arkansas Record Sealing

Comprehensive Criminal Record Sealing Act of 2013 — Agent Training Reference

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A complete operational knowledge base for clearing criminal records in Arkansas: petition-based **sealing** of misdemeanors and eligible felonies under Act 1460 (A.C.A. §§ 16-90-1401 to 1419), the Act 346 First Offender route, non-conviction and arrest sealing, the exclusion lists, waiting periods, procedure, fees, and record requests.

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Coverage	State of Arkansas (the circuit or district court that handled the case; ACIC criminal history)
Primary statute	A.C.A. §§ 16-90-1401 to 1419 — Comprehensive Criminal Record Sealing Act of 2013 (Act 1460)
Also relevant	Act 346 of 1975 (First Offender Act, pre-adjudication dismissal and sealing); A.C.A. § 16-98-303 (drug court)
Controlling changes	Act 1460 (eff. 1/1/2014); HB 1831 / Act 910 (2019) cut waits and fees; Act 341 (2021) further amended
Document type	Internal training / retrieval reference — not legal advice
Currency	Reflects A.C.A. Title 16, Subchapter 14 as amended through the 2024–2025 sessions

VERIFY BEFORE RELYING

Arkansas calls the remedy **sealing**, not expungement, though people use both words; a sealed record is treated as if it never occurred for most purposes, with carve-outs (e.g., law-enforcement hiring, ACIC, later sentencing). The eligibility lines turn on offense **class** (Y/A/B/C/D) and on specific exclusion categories (violent, sexual, manslaughter, DOC time, CDL traffic). The 2019 and 2021 amendments cut most felony waits and removed filing fees, so older guides overstate the barriers. The agent must classify the Arkansas offense, screen § 16-90-1408, and verify the current statute and the official AOC/ACIC uniform forms before declaring eligibility.

How the agent should use this document

Arkansas routes almost everything through a **uniform petition to seal** filed in the court that handled the case, but the rules split by disposition and offense class. The agent's job is to (1) determine whether the matter is a non-conviction (arrest, nolle prosequi, dismissal, acquittal), a misdemeanor conviction, or a felony conviction; (2) for convictions, confirm the sentence is fully complete — including all fines, restitution, court costs, and license reinstatement; (3) classify the offense and screen the felony-ineligible list and the misdemeanor waiting categories; and (4) check the one-prior-felony limit and whether an Act 346 First Offender path applied at the plea stage.

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Statutory shorthand used throughout

Term	Meaning
§ 16-90-1405	Eligibility to seal a MISDEMEANOR offense or violation
§ 16-90-1406	FELONY convictions ELIGIBLE for sealing; the one-prior-felony limit
§ 16-90-1407	Special procedure for a felony controlled-substance POSSESSION conviction
§ 16-90-1408	FELONY convictions INELIGIBLE for sealing (the categorical bars)
§ 16-90-1409	Sealing records of ARRESTS
§ 16-90-1410	Sealing NOLLE PROSEQUI, DISMISSED cases, and ACQUITTALS
§ 16-90-1413/1414	Procedure; the UNIFORM petition and uniform order to seal
Act 346 of 1975	First Offender Act — pre-adjudication probation, dismissal, and sealing
ACIC	Arkansas Crime Information Center — the state criminal-history repository

1. Eligibility rules

One statute, routed by disposition and offense class.

Situation A — Non-convictions (§§ 16-90-1409, 1410)

- **Acquittal** (found not guilty on all charges) — may petition to seal at any time.
- **Nolle prosequi / dismissal** — may petition to seal the records of the dismissed case.
- **Arrest, no charges filed** — the arrest record may be sealed under § 16-90-1409.
- These are the most accessible filings and generally carry no waiting period.

Situation B — Misdemeanor convictions (§ 16-90-1405)

- Most misdemeanor convictions and violations are eligible for sealing after the sentence is fully completed (incarceration, probation, all fines, restitution, court costs, and any license reinstatement).
- There is **no limit** on how many misdemeanors may be sealed.
- Certain listed misdemeanors carry a 5-year wait; DWI/BWI carries a 10-year wait (Section 2).

Situation C — Felony convictions (§§ 16-90-1406, 1407)

- Eligible (mainly non-violent Class C and Class D felonies, and certain drug felonies) may be sealed after sentence completion. Since the 2019/2021 amendments, **most eligible felonies have no general waiting period** — a petition may be filed immediately on completion.

One prior felony limit: a person may not have more than one previous felony conviction. Felonies committed as part of the same criminal episode count as a single conviction (§ 16-90-1406).

- Controlled-substance possession felonies have a dedicated path under § 16-90-1407.

Act 346 First Offender route

Decided at the plea stage: a first offender who pleads guilty or nolo and is placed on probation under Act 346 has the case **dismissed and sealed** on successful completion — no conviction is ever entered. This is the **strongest outcome**, but must be elected early; the agent should ask whether Act 346 applied.

AGENT GUIDANCE

Route by disposition first: non-conviction (seal any time), misdemeanor (seal on completion, watch the 5- and 10-year lists), felony (seal on completion if eligible and not over the one-prior limit).

Always confirm the sentence is **fully** complete — unpaid restitution, court costs, or an unreinstated license all block sealing even when the offense is eligible.

2. Waiting periods

Most sealing in Arkansas has NO waiting period after the 2019/2021 amendments. The exceptions are specific misdemeanor categories and a procedural objection window.

Disposition / offense	Waiting period	Measured from
Acquittal / nolle prosequi / dismissal / arrest	None	—
Most misdemeanor convictions and violations	None	Sentence completion
Certain listed misdemeanors (e.g., negligent homicide, 3rd-degree battery, indecent exposure, public sexual indecency, 4th-degree sexual assault, certain domestic offenses)	5 years	Sentence completion
DWI / BWI misdemeanor conviction	10 years	Sentence completion
Most eligible (non-violent) Class C / D felonies	None	Sentence completion
Violent Class C / D felony (where otherwise eligible)	5 years	Sentence completion
Prosecutor objection window — misdemeanor	30 days	Receipt / filing of petition
Prosecutor objection window — felony	90 days	Receipt / filing of petition
Refile after a DENIAL — misdemeanor/violation	90 days	Date of denial
Refile after a denial — 5-year-wait misdemeanor	1 year	Date of denial

The headline change from the 2019 HB 1831 / Act 910 and 2021 Act 341 amendments is that the old flat 5-year felony wait and the predicate-felony disqualifier were removed for non-violent felonies, and filing fees were eliminated. What remains are the targeted misdemeanor waits (5 years for the listed offenses, 10 years for DWI/BWI), the 5-year wait for the narrow band of violent Class C/D felonies that are still eligible, and the prosecutor's statutory objection window before the court rules.

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VERIFY BEFORE RELYING

The 5-year misdemeanor list and the violent-Class-C/D treatment are the volatile pieces and have moved across the 2019 and 2021 amendments. The agent must confirm the current § 16-90-1405 list and the § 5-4-501(d)(2) violence cross-reference before quoting a wait, rather than relying on a fixed list here.

3. Disqualifying / ineligible offenses

The felony bars in § 16-90-1408 are categorical — time and sentence completion do not cure them.

Felonies NOT eligible for sealing (§ 16-90-1408)

- A **Class Y, Class A, or Class B** felony (except certain drug felonies allowed under § 16-90-1406).
- **Manslaughter** (§ 5-10-104).
- A **felony sex offense**.
- A **felony involving violence** under § 5-4-501(d)(2).
- An **unclassified felony** with a maximum sentence of more than ten (10) years.
- A felony for which the person **served any portion of the sentence in the Department of Correction**.
- A **felony traffic offense** committed while holding a commercial learner's permit or CDL (parking, weight, and vehicle-defect violations excepted).

Across-the-board limits

- **One-prior-felony limit.** More than one previous felony conviction (even if already sealed) bars sealing a further felony; same-episode felonies count as one.
- **Sentence must be complete.** Outstanding restitution, fines, court costs, or an unreinstated license means the sentence is not complete and the matter is not yet sealable.
- **Pending charges / new convictions.** New offenses during a waiting period or pending charges defeat or delay sealing.
- **CDL traffic carve-out.** A commercial license holder can never seal a misdemeanor or violation traffic offense committed in any vehicle.
- **Out-of-state / federal.** Arkansas sealing reaches Arkansas records only.

AGENT GUIDANCE

Screen § 16-90-1408 first for any felony: Class Y/A/B (non-drug), manslaughter, sex, violence under § 5-4-501(d)(2), unclassified over 10 years, any DOC time, and CDL traffic are hard bars.

Count prior felonies carefully — the one-prior limit is the most common felony disqualifier after the categorical list; remember same-episode felonies merge into a single conviction.

4. Case outcome rules

Disposition and offense class drive the route and timing. This table is the agent's primary routing logic for Arkansas.

Case outcome / offense	Route	Wait	Note
Acquittal / nolle prosequi / dismissal	Seal (§ 1410)	None	Most accessible
Arrest, no charges filed	Seal (§ 1409)	None	Arrest record

Act 346 first-offender plea, completed	Dismiss + seal	None	No conviction entered
Most misdemeanor convictions / violations	Seal (§ 1405)	None	On completion
Listed misdemeanors (Section 2)	Seal (§ 1405)	5 yrs	After completion
DWI / BWI misdemeanor	Seal (§ 1405)	10 yrs	After completion
Non-violent Class C / D felony (eligible)	Seal (§ 1406)	None	On completion; one-prior limit
Felony drug possession	Seal (§ 1407)	None	Special procedure
Violent Class C / D felony (where eligible)	Seal (§ 1406)	5 yrs	Narrow band
Class Y/A/B, sex, violent, DOC time, manslaughter	—	Ineligible	§ 1408 bar

Effect of sealing: under the Act, a sealed record is treated as if the conduct **never occurred**, and the person may lawfully state they have not been arrested for or convicted of the sealed offense, with limited exceptions (applying for certain law-enforcement positions, ACIC access, and use in a subsequent prosecution or sentencing). Sealing restricts public access; it is not a physical destruction of records, and criminal-justice agencies retain access.

AGENT GUIDANCE

Be precise on effect: **sealed** in Arkansas means treated as if it never occurred for most purposes, but criminal-justice agencies and certain employers still see it.

Match the route to the disposition and class, confirm completion, and apply the one-prior-felony limit before telling a user a felony is sealable.

5. Required forms

Arkansas uses standardized AOC / ACIC **uniform petition-and-order to seal** forms, posted on the Department of Public Safety / ACIC site, filed in the court that handled the case. Each disposition has its own petition-and-order pair.

Form (uniform petition + order)	Use
Petition and Order to Seal Felony (Act 1460)	Eligible felony convictions under § 16-90-1406; one-prior-felony limit applies.
Petition and Order to Seal Misdemeanors (Act 1460)	Misdemeanor convictions and violations under § 16-90-1405.
Petition and Order to Seal Misdemeanor DWI / BWI	Driving- or boating-while-intoxicated misdemeanor; 10-year wait.
Petition and Order to Seal Controlled-Substance Possession	Felony controlled-substance possession under the § 16-90-1407 special procedure.
Petition and Order to Seal Nolle Prosequi / Dismissal / Acquittal / Not Filed	Non-conviction dispositions under § 16-90-1410.
Petition and Order to Seal Arrest (Act 1460)	Arrest records under § 16-90-1409.

Petition and Order to Seal Pardoned / Youthful Felony Offender	Records of a pardoned person under § 16-90-1411.
Petition and Order to Dismiss and Seal First Offenders (Act 346 / Act 1460)	First-offender pre-adjudication dismissal and sealing.
Pre-Adjudication Drug Court dismiss-and-seal	Drug-court disposition under the Arkansas Drug Court Act.

Each filing identifies the petitioner, the case and court, the offense and class, the disposition, and the statutory basis, and pairs the petition with a proposed uniform order for the judge. The petition is filed with the circuit or district court that handled the case, and a copy goes to the prosecuting attorney, who has the statutory objection window (30 days misdemeanor, 90 days felony) before the court rules.

AGENT GUIDANCE

Pick the petition-and-order pair by disposition: felony, misdemeanor, DWI/BWI, drug possession, non-conviction, arrest, pardon, or Act 346 first offender.

These are the official ACIC uniform forms — they can be replicated field-for-field if the user uploads the current PDFs; until then any built form is **modeled** on the uniform structure and should say so.

6. Filing instructions

Sealing is filed in the court that handled the case; a person with cases in several courts files in each.

- **1. Get the record.** Pull the ACIC criminal history and the court docket / Judgment and Commitment Order to confirm each charge, the offense class, the disposition, and the sentence-completion dates.
- **2. Confirm completion.** Verify all incarceration, probation, fines, restitution, court costs, and license reinstatement are satisfied — this is the usual practical gate.
- **3. Pick the route and screen.** Non-conviction, misdemeanor, or felony; screen § 16-90-1408 and the one-prior-felony limit for felonies, and the 5-/10-year lists for misdemeanors.
- **4. Complete the uniform petition and order** for the matching disposition, citing the statute, case number, offense, and class.
- **5. File** in the circuit or district court that handled the case. Act 1460 eliminated filing fees for sealing.
- **6. Serve the prosecuting attorney.** The prosecutor has 30 days (misdemeanor) or 90 days (felony) to file a notice of opposition stating reasons.
- **7. Ruling and distribution.** If granted, the court enters the uniform order; the clerk sends copies to ACIC, the arresting agency, the prosecutor, and the Administrative Office of the Courts, which update their repositories to seal the record.

AGENT GUIDANCE

Venue is the court that handled the case — file separately in each county where the person has records.

The prosecutor's objection window is the main timing variable; if there is no objection, many courts grant on the papers, and a contested petition goes to a hearing.

7. Court-specific quirks

Arkansas-specific practice points that surprise people.

- **Sealing, not expungement.** “Expungement” is the old informal word; “sealing” is the current legal term and the two mean the same thing in Arkansas practice.
- **2019/2021 reforms changed the math.** The old flat 5-year felony wait, the predicate-felony disqualifier for non-violent felonies, and filing fees are gone — older guides overstate the barriers.
- **DOC time is a hard bar.** Any portion of a felony sentence served in the Department of Correction makes that felony ineligible, regardless of class.
- **One prior felony.** The single-prior-felony limit is decisive; same-episode felonies merge to one.
- **Act 346 is elected early.** The strongest outcome (dismiss-and-seal, no conviction) is chosen at the plea stage, not after; ask whether it applied.
- **CDL holders.** A commercial-license holder can never seal a traffic misdemeanor or violation, in any vehicle, and CDL felony traffic offenses are barred.
- **Sealing is restriction, not destruction.** Law enforcement, ACIC, and certain licensing/employment contexts retain access, and sealed convictions can be used in later sentencing.

AGENT GUIDANCE

Lead with the good news post-2019/2021: most non-violent felonies and misdemeanors seal on completion with no wait and no fee — but DOC time and the one-prior limit are the felony killers.

Flag the Act 346 question and the CDL carve-out proactively; both change the answer and surprise people.

8. Fee information

Act 1460 eliminated sealing filing fees; the real costs are records and any counsel.

Item	Amount	Note
Sealing petition filing fee	\$0	Filing fees eliminated by the 2019 amendments
ACIC criminal-history record	ACIC fee	To confirm offenses, classes, dispositions
Copy of Judgment & Commitment Order	Small clerk fee	From the sentencing court clerk
Attorney fees (if represented)	Varies	Not required; legal-aid and sealing clinics assist

Because the filing fee is gone, the practical costs are obtaining the ACIC criminal history and the Judgment and Commitment Order to confirm eligibility, plus counsel if the person chooses representation. As with most states, the real gate is satisfying outstanding restitution, fines, and court costs — which is a completion requirement, not a filing fee.

AGENT GUIDANCE

Lead with no filing fee. The cost that matters is paying off court debt and restitution, which is a prerequisite to eligibility rather than a fee.

Pull the ACIC history first so the offense classes (which drive the misdemeanor waits and the felony bars) are confirmed.

9. Criminal history (ACIC) request process

Confirming the record fixes the offense class (which decides eligibility and any wait), the disposition, and the completion dates.

A. Statewide history — Arkansas Crime Information Center (ACIC)

- ACIC maintains the state criminal-history repository; a person may obtain their own record to confirm charges, classes, and dispositions.
- On a granted sealing order, ACIC, the arresting agency, the prosecutor, and the Administrative Office of the Courts receive the order and update their records to seal the matter.

B. Court records — the sentencing court

- The circuit or district court that handled the case holds the docket and the Judgment and Commitment Order, and is where the uniform petition is filed.

C. Federal — FBI Identity History Summary

- For records that may extend beyond Arkansas, the FBI fingerprint-based Identity History Summary is the federal equivalent; Arkansas sealing reaches Arkansas records only.

VERIFY BEFORE RELYING

ACIC request methods and fees and the official AOC/ACIC uniform forms can change. The agent should verify the current ACIC record process and fee and the current uniform petition forms at the time of advising, rather than quoting fixed figures from memory.

AGENT GUIDANCE

Frame the ACIC record request as step one — it fixes the offense classes that decide eligibility and any wait, and confirms the dispositions and completion dates. Direct users to the sentencing court for the docket, the J&C; order, and the filing.

10. Sample petitions and completed examples

Arkansas filings use the AOC/ACIC uniform petition-and-order pairs in the court that handled the case. The examples show structure and key recitals. Names, dates, and identifiers are fictional.

Example A — Petition to Seal an Eligible Felony (§ 16-90-1406)

IN THE CIRCUIT COURT OF PULASKI COUNTY, ARKANSAS
 STATE OF ARKANSAS v. ANDRE L. CARTER No. 60CR-18-1234
 UNIFORM PETITION TO SEAL RECORDS (Act 1460 of 2013)

1. Petitioner: Andre L. Carter; DOB 07/22/1992.
2. On 03/14/2019 petitioner was convicted of Theft of Property, a Class D felony (A.C.A. § 5-36-103), in this Court.
3. The offense is eligible under § 16-90-1406 and is not barred by § 16-90-1408 (not Class Y/A/B, not a sex or violent felony, no DOC time served, not a CDL traffic felony).
4. Petitioner has no more than one previous felony conviction.
5. Petitioner completed the entire sentence — probation, all fines, restitution, and court costs — on 04/01/2020.
6. Petitioner requests entry of the Uniform Order to Seal. (Copy served on the prosecuting attorney; 90-day objection window.)

Examples B, C & D — Other situations

B. MISDEMEANOR (§ 16-90-1405): 'Having completed the sentence and paid all fines and costs, petitioner moves to seal a Class A misdemeanor conviction. No waiting period applies (not a listed 5-year offense and not DWI/BWI).'

C. NON-CONVICTION (§ 16-90-1410): 'The charge was dismissed / nolle prossed / resulted in acquittal on [date]; petitioner moves to seal all records of the case. No waiting period.'

D. ACT 346 FIRST OFFENDER: 'Petitioner pleaded under Act 346, completed probation, and moves to DISMISS AND SEAL; no conviction is entered of record.'

What each order does

On entry, the Uniform Order to Seal directs the clerk and ACIC (and the arresting agency, prosecutor, and Administrative Office of the Courts) to seal the records of the arrest, charge, and conviction, after which the petitioner may lawfully state the matter did not occur for most purposes. An Act 346 dismiss-and-seal order means no conviction was ever entered. None of these reach federal or out-of-state records, and law-enforcement / ACIC access and use in later sentencing are preserved.

This reference is an internal training and retrieval aid for the Wilma assistant. It summarizes Arkansas's record-sealing law and common practice and is not legal advice. Arkansas seals records under the Comprehensive Criminal Record Sealing Act of 2013 (Act 1460, A.C.A. §§ 16-90-1401 to 1419), as amended by the 2019 (HB 1831 / Act 910) and 2021 (Act 341) sessions, which cut most waits and eliminated filing fees. The agent must verify the current text of §§ 16-90-1405, 1406, 1407, 1408, 1409, and 1410, the § 5-4-501(d)(2) violence cross-reference, the official AOC/ACIC uniform forms, ACIC processes, and current fees before relying on any rule here.